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EXECUTIVE VICE PRESIDENT

September 28, 2012

VICE-PRESIDENTS (AREA)

SUBJECT: Employees in Non-Traditional Full-Time (NTFT) Duty Assignments Working Less Desirable Schedules than Postal Support Employees (PSE)

The collective bargaining agreement with the APWU provides for Non-Traditional Full-Time (NTFT) Duty Assignments of 30-48 hours a week in the Clerk and MVS Crafts. It also provides for Postal Support Employees (PSE) who may work more or less than 40 hours a week, as needed. Employees working in NTFT Duty Assignments of less than 40 hours a week are not guaranteed more hours per week than the PSE's working in the same facility.

However, where employees working in NTFT duty assignments of less than 40 hours a week are regularly working less hours than the PSEs, and those work hours would otherwise be available to be performed by the career employees (same day or tour, etc.), the hours of the NTFT duty assignments should be appropriately adjusted to modify the hours and/or to achieve a more desirable work schedule. This adjustment should balance the workload according to operational need. It should also reduce any unnecessary impact to career employees.

Questions or concerns should be directed to Labor Relations personnel.

Megan J. Brennan

QUESTIONS & ANSWERS

These questions and the responses thereto are not intended to alter, amend, or change in any way the terms of the 2010-15 agreement.

Question #1: When applying Article 37.3.A.1 and the principle identified in the September 28, 2012 instruction from Megan Brennan to all Area Vice Presidents regarding non-traditional full-time (NTFT) duty assignments when reviewing work schedules to achieve a more desirable work schedule for career employees, what hours should be considered?

RESPONSE: Any regularly worked hours should be considered when modifying bid duty assignments for career employees. However, these work hours need not be utilized when they cannot be combined efficiently.

Question #2: Can you cite an example of how an occupied duty assignment might be modified as a result of applying this principle?

RESPONSE: An occupied NTFT (30 hour) duty assignment exists as follows: 2300-0500 [Tue/Wed NS days]. Various PSEs regularly work from 0100-0700 on Mondays and Saturdays. The FTR duty assignment could be reposted as a NTFT (34 hour) duty assignment scheduled 2300-0500 on Sun/Thu/Fri and 2300-0700 on Mon/Sat [Tue/Wed NS days], except where the work is caused by a temporary absence of an employee. The net effect is that a 30 hour NTFT duty assignment can be modified to a 34 hour NTFT duty assignment.

Question #3: Could application of this principle change a NTFT duty assignment to a traditional duty assignment?

RESPONSE: Yes. For example, an occupied NTFT (30 hour) duty assignment exists as follows: 1000-1600 schedule with Sun/Mon NS days in an office where PSEs and career employees in NTFT duty assignments work the window. PSE A regularly works 0850-1500 with Sunday NS day. PSE B regularly works1100-1700 with Sunday NS day. The 30 hour NTFT duty assignment could be reposted as a traditional FTR (40 hour) duty assignment with a schedule of 0850-1700 with Sun/Mon NS days. The net effect is that a 30 hour NTFT duty assignment can be modified to a traditional 40 hour duty assignment.

Question #4: Does application of this principle always result in increased hours for the career duty assignment?

RESPONSE: No. For example, an occupied NTFT (36 hour) duty assignment exists as follows: 0600-1200 schedule with a single Sunday NS day. PSE A regularly works 0700-1300 with a Sunday NS day. PSE B regularly works 0550-1200 with Sat/Sun NS days. The 36 hour six-day NTFT duty assignment could be reposted as a NTFT (35 hour) duty assignment with a 0550-1300 schedule and Sat/Sun NS days. The net effect is that a single NS day 36 hour NTFT duty assignment can be modified to a 35 hour NTFT duty assignment with two NS days, while PSE B is given the single NS day.

Question #5: Does application of Article 37.3.A.1 and this principle of creating desirable duty assignments only apply to NTFT duty assignments?

RESPONSE: No. For example, an occupied traditional FTR bid duty assignment exists as follows: 0800-1650 schedule with Tue/Wed NS days. PSE A regularly works 0800-1650 with a Sunday NS day. PSE B regularly works 0800-1650 with a Saturday NS day. The traditional duty assignment

could be reposted with Sat/Sun NS days. The net effect is that a traditional 40 hour duty assignment can be modified when the Tue/Wed NS days are changed to Sat/Sun NS days.

Question #6: Could overtime hours as well as PSE hours be utilized when applying this principle?

RESPONSE: It depends. All hours being regularly worked that are not being performed by a FTR employee as a part of their bid duty assignment could be utilized to create better bid duty assignments for career employees. For example, a vacated NTFT (30 hour) duty assignment exists as follows: 1000-1600 schedule with Sun/Mon NS days. FTRs consistently work after tour overtime every Monday, Wednesday and Friday between1650-1850. PSE A regularly works 1200-1850 with Sun/Wed NS days. By reducing the regular Wednesday overtime hours, combined with the hours regularly worked by PSE A, it appears that the assignment might be modified to a traditional 40 hour duty assignment with a 1000-1850 schedule with Sun/Mon NS days when it is posted for bid. While the overtime could be given to the NTFT duty assignment, in this scenario there appears to be a need for 2 employees during the same 4 hour window (1200-1600). For that reason, the need for the PSE would still exist.

Note: The scenarios cited above are examples only. They are not intended to be an exclusive list of possibilities. These are examples of situations that should be considered for changing bid assignments however, it is understood that these concepts will not impede management's options under Art 7.1.b.3 & 4.

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